

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark V Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Friday, May 29, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-00756	Maria Medina vs Foster Farms, LLC
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Motion to Compel Further Responses to Requests for Production of Documents; Request for Monetary Sanctions Against Defendant Foster Farms LLC

Plaintiff's motion to compel further responses to Production of Documents, Set One, is GRANTED IN PART AND DENIED IN PART.

As to No. 36, the motion is GRANTED. Objections OVERRULED. Defendant is to provide a further verified, code-compliant, response. (See Code Civ. Proc. §§ 2031.210; 2031.220; 2031.230; 2031.240.)

As to Nos. 43, 44, 46, 48, 50, 52, 54, 56, 58, 60, 62, 64, 66, 67, 68, 69 the motion is GRANTED IN PART. As to Defendant's assertion that they produced all documents in their possession, custody, or control, the court cannot force Defendant to produce documents it does not have. If the party has concealed records, the court has the power to exclude documents or other physical evidence at trial that has been concealed and that would cause unfair surprise at trial. (*Pate v. Channel Lumber Co.* (1997) 51 Cal.App.4th 1447, 1455-1456.)

However, Defendant in its separate statement in opposition states that Defendant would provide the name of the third-party provided it uses, and the names of the courses taken. To the extent that it has not been done, Defendant is to provide the name of the third-party provided it uses, and the names of the courses taken.

As to Nos. 78-89, 90-93, 107, 113, the motion is DENIED as untimely. Defendant objected to these requests as untimely in their opposition dated November 17, 2025, and did not waive the issue of timeliness as to these requests. The court's prior ruling ordering the parties to further meet and confer and narrow the issues did not make timely the request for further responses as to these requests.

The request for monetary sanctions is DENIED. Each party acted with substantial justification for bringing and opposing the motion.

Motion to Compel Further Responses to Interrogatories (Set One); Request for Monetary Sanctions Against Defendant Foster Farms LLC

Plaintiff's motion to compel further responses to Special Interrogatories, Set One, is GRANTED IN PART. Defendant is to provide further responses to Special Interrogatories, Set One, Nos. 13-18, subject to a Belaire-West notice and privilege log for any information withheld on a claim of privilege.

Regarding the issue of third-party privacy, the employee information to be produced is subject to a Belaire-West notice that will provide notice to the identified employees and allow them to opt out of the disclosure. The requested information of the identified employees that do not opt out is to be provided to Plaintiff.

The parties are ordered to meet and confer regarding the Belaire-West notice.

The request for monetary sanctions is DENIED. Each party acted with substantial justification for bringing and opposing the motion.